

8. "In all matters relating to Awards ;
9. "To compel the specific performance of Agreements ;
10. "To compel the discovery of concealed Papers or Evidence, or such as may be wrongfully withheld from the party obtaining the benefit of the same ;
11. "To prevent multiplicity of Suits and to stay proceedings in a Court of Law prosecuted against Equity and good conscience ;
12. "To institute proceedings for the repeal of Letters Patent erroneously or improvidently issued ;
13. "To stay Waste ;
14. "In all cases of Accident ;
15. "In all cases of Account ;
16. "In all cases relating to Co-partnership."

Not to supersede the Heir and Devisee Commission.

Vide 8 Vic. Ch. 8.

Infants.

Guardian Act, 8 Geo. 4 Ch. 6.

Guardian, how appointed.

With a proviso, that nothing in the Act should extend to supersede the authority of the Heir and Devisee Commissioners. The powers of these Commissioners are now defined by the Act of 8 Vic. Ch. 8, dated 10th February, 1845. The claims adjudicated upon by them are those of any party "claiming any lands within Upper Canada, for which no patent hath issued, as being the Heir, Devisee, or Assignee of the original Nominee of the Crown, or as having derived a title or claim to such lands from or through any such Heir, Devisee or Assignee."

Under the above Clause (7) with respect to Infants the jurisdiction of the Court is confined to cases which do not fall within the "Act respecting the appointment of Guardians," being the 8th Geo. IV. Ch. 6, dated 17th February, 1827. Revised Statutes, page 465. When the case comes within that Act, the application for the appointment of a Guardian must be to the Probate or Surrogate Court, and not to the Court of Chancery. It would undoubtedly be more convenient, had the Court of Chancery a concurrent jurisdiction. In cases where the Estate of an Infant, whose father is not living, and who has no legal Guardian, is in Chancery, although that Court has full power over the Estate, it does not seem, under

the execution of a Guardian exercise Vic. Ch. applicati a refusal exception exercise

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The Patent i toria, (1 may be this Pro Court formerly Plaintiff, t specting Provinc interest notice o order, in